

downe the perfecte disposition of all his landes & goodes, wth many legacies, so specialle & so artificialle, as it was altogether impossible for any man to doe, no, not any lawyer whatsoeuer; neither coude the memorye of man Carye awaye so muche; wth a Clause of reuocation of all former willes, & a solemne witnessinge by the partie himselfe, as though it had bene done in his lyfe time, & not as a declaracion of the intente & meaninge of his laste will; w^{ch} had bene good for goods yf aftewardest prooued as the declaracion of his intente by parolle onelye: & so bothe the cheife Justices delyuered there opinions:

'In this will the Defend^{te} had for better Collor to the same deuysed parte of the sayde Rich^d Margerie's estate to y^e Maior & Aldermen of Boston for the vse of y^e poore, & other parte of it to y^e Church, to one Doct^r wright, but y^e pl. beinge a simple, weake, younge Fellowe, & an apprentice, he woulde haue boughte his yeares; & as soone as he Came to full age he [the defendant], pretendinge to prooue a Father vnto him & to protecte him, gotte a Fefement of his lande, vpon truste as he supposed, but then he tolde him there was a will w^{ch} tooke y^e lande from him, & yet allwayes after that, & now also, denyed that there was any will; & yet, not longe before this suite began, he gotte a relleasse from him, so deuysed & penned as the lyke hathe bene seldome seene, *et clausulae inconsuetae inducunt suspicionem*. & in that was all questions, suites and controuersies touchinge y^e will relleashed; whereas there was then no question or suite concerninge y^e same.

'For this offence he had a very sharpe sentence by y^e generall Consente of all y^e Courte, accordinge to y^e statute of 5 Eliz., cap. 14:—He shall paye double Costes & damages to y^e partie greiued, shalbe sette one the pillorie & haue bothe his eares cutt of, his nostrilles to be slitte & cutte & seared wth a hotte iron, & shall forfeite to the kinge y^e proffittes of all his landes duringe his lyfe, & haue perpetuall imprisonm^{te} duringe life.'

¹ This is the punishment imposed by the statute.

The
defendant's
cunning

and fraud

[p. 304]

Sentence

5 Eliz.
cap. 14